

25NNCV05333 25NNCV05333

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-08-12

Motion: FJKA LIVING TRUST'S MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSIONS – SET ONE; REQUEST FOR MONETARY SANCTIONS

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Case Number: 25NNCV05333 Hearing Date: August 12, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

DIANE
D'ANGELO,

Plaintiff(s),

vs.

FJKA
LIVING TRUST, et al.,

Defendant(s).

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CASE NO.: 25NNCV05333

[TENTATIVE]

ORDER RE: FJKA LIVING TRUST'S MOTION TO COMPEL FURTHER RESPONSES TO
REQUESTS FOR ADMISSIONS – SET ONE; REQUEST FOR MONETARY SANCTIONS

Dept.

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8:30

a.m.

August

12, 2026

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On June 23, 2026, defendant FJKA Living

Trust ("Defendant") filed this motion to compel further responses to Request
for Admissions – Set 1 from plaintiff Diane D'Angelo ("Plaintiff"). Defendant
also requested that the Court impose sanctions on Plaintiff and her attorneys,
Law Offices of Sharona Eslamboly Hakim, to pay sanctions in the amount of
\$2,280, consisting of \$2,200 in attorney's fees and \$60 for the filing fee of
this motion.

On July 30, 2026, Plaintiff filed a

“combined” opposition brief stating that she served substantive verified responses and the motion was moot. Plaintiff also argues that sanctions should not be imposed because Defendant did not adequately meet and confer with Plaintiff before filing this motion and the amount of sanctions requested is excessive.

On August 5, 2026, Defendant filed a reply brief acknowledging that Plaintiff served further responses on July 30, 2026. Defendant maintains its request for sanctions and refers back to the meet and confer letter sent on May 13, 2026, to which Plaintiff never responded.

Code of Civil Procedure section 2033.290(d) makes monetary sanctions mandatory unless the Court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. Sanctions may be awarded even after responses have been provided to the moving party after the motion was filed. (CRC 3.1348.) Plaintiff does not show that imposing sanctions would be unjust. First, Defendant provided Plaintiff with a meet and confer letter and failed to receive any response to it. Second, Defendant waited over a month after sending this letter to file the instant motion.

Accordingly, while the motion is denied as moot, the Court imposes sanctions on Plaintiff and counsel of record, jointly and severally, in the amount of \$2,200, consisting of 3.6 hours at an hourly rate of \$600 and a \$60 filing fee, to be paid within 20 days of the date of this Order.

Defendant to
give notice.

Dated
this 12th
day of August 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this

tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.